

2:00PM LINE 7

25-CIV-04767

JIAQI WU VS. GENERAL MOTORS, LLC.

JIAQI WU
GENERAL MOTORS, LLC.

JAMES LAWRENCE CARROLL
KRISTEN ALLISON

Defendant's Motion for Compliance Pursuant to C.C.P 871.26; and Request for Sanctions

TENTATIVE RULING:

For the reasons stated below, defendant General Motors, LLC's "Motion for Compliance Pursuant to C.C.P. § 871.26, and Request for Sanctions," filed on May 29, 2026, is **GRANTED in part** and **DENIED in part**.

GM's motion to compel plaintiff to appear for deposition within ten (10) days of the September 16, 2026 hearing date is **GRANTED**. (Code Civ. Proc., § 871.26, subd. (c).)

Plaintiff does not dispute that Section 871.26 applies to this case. The statute requires that plaintiff appear for an initial deposition within 120 days after defendant's responsive pleading. (Code Civ. Proc., § 871.26, subd. (c).) GM filed its demurrer (that is, the initial responsive pleading) in early October 2025. Thus, plaintiff's deposition should have taken place by February 2026 (nearly six months ago). Plaintiff argues that this motion to compel the deposition is moot, because after GM filed this motion, plaintiff agreed to appear for deposition on September 9, 2026, and thus, plaintiff argues that the deposition will be completed by the time of the September 16, 2026 hearing. The court has no way to know whether the September 9 deposition will actually go forward (or has happened). Neither party has updated the court on this issue. Plaintiff previously agreed to prior deposition dates, only to later cancel them. This order compelling the deposition will be rendered moot, of course, if, by the time of the September 16, 2026 hearing, plaintiff's Section 871.26 deposition has already occurred.

Defendant's request for monetary sanctions against plaintiff's counsel is **DENIED**. Code of Civil Procedure, section 871.26, subdivision (c) mandates an award of monetary sanctions "[u]nless the party failing to comply with this section shows good cause." Here, after GM agreed to a February 21, 2026 date for plaintiff's deposition, it appears that plaintiff, plaintiff's counsel, and a Cantonese interpreter were *ready to proceed on that date*, but GM chose to cancel the deposition and to re-schedule it, because plaintiff had provided their own interpreter, and GM preferred to use its own interpreter. Thus, GM chose to re-schedule the deposition. This fact makes it difficult for GM to argue that plaintiff has evaded the deposition.

Further, although plaintiff later agreed to a March 25, 2026 deposition date, only to send a letter on March 11, 2026 stating that plaintiff was no longer available on March 25, 2026 (Stark Decl., ¶ 13), since that time there is no evidence that GM has tried to re-schedule the deposition. The Stark declaration states that since March 11, 2026, "Plaintiff has not attempted to reschedule the deposition." (*Id.*, ¶ 15.) But the same could be said of GM. GM filed this motion on May 29,

2026. There is no evidence that from March 11, 2026 to August 2026, GM's counsel made any attempt to reschedule the deposition.

Thus, although plaintiff has some blame here, under the circumstances, the court finds that plaintiff has shown sufficient "good cause" to avoid sanctions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, GM's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 8

25-CIV-08356

JOSE MONTEVERDE VS PACIFICA LINDA MAR, INC.

JOSE LUIS MONTEVERDE
PACIFICA LINDA MAR, INC.

SEUNG YANG
JANELLE L. MENGES

Defendant's Petition to Compel Arbitration, Dismiss Class Claims, and Stay Further Proceedings Pending Arbitration

TENTATIVE RULING:

Defendant Pacifica Linda Mar, Inc.'s Motion to Compel Arbitration of plaintiff's claims is **GRANTED**. Plaintiff's class claims and individual PAGA claims are compelled to arbitration, and plaintiff's non-individual PAGA claim is stayed pending the outcome of arbitration.

Defendant argues that the court should not consider plaintiff's opposition because it was filed late according to the parties' proposed briefing schedule for the motion, submitted as part of the parties' Joint Case Management Statement on June 16, 2026. Plaintiff's counsel responds that because the court did not confirm the parties' schedule, counsel did not calendar the dates. Plaintiff's counsel's declaration adequately explains the delay, and defendant has not shown that it was prejudiced. Plaintiff filed his opposition almost a month before the hearing on the motion and defendant's reply brief shows that it had adequate time to respond to the opposition.

A. The Parties Entered into an Arbitration Agreement

Defendant has met its burden and proved by a preponderance of evidence that the parties entered into an arbitration agreement and that the dispute is covered by the agreement. (Knight, Cal. Prac. Guide: Alt. Disp. Res. (Rutter, Dec. 2025 Update) ¶ 5:320.)

Joanne Lane, defendant's Administrator and Custodian of Records, who is responsible for "day-to-day operations of the facility, including Human Resources, Payroll, and Staff Development" states that she is familiar with the process of onboarding employees. (Lane Decl., filed Mar. 6, 2026, ¶¶ 2-3.) Ms. Lane states that plaintiff signed a Voluntary Mutual Agreement to Arbitrate (Agreement) on or about July 18, 2023, and attached a copy of the agreement as Exhibit A to her declaration. (*Id.*, ¶ 5, exh. A.)

The parties to the Agreement are identified as "Linda Mar Care Center" and "this employee named below." (Agreement, at p. XIII.) The Agreement has a line for "Employee Signature" with a signature above it, a line for "Printed Employee Name," above which is handwritten "Jose Monteverde." (*Id.*, at p. XVI.) The signature and printed name are hand dated July 18, 2023. There are also lines for "Company Representative Signature" and "Title of Company Representative," and a space to write the date next to those lines, all of which are blank.
